

Smt. Meena Pushp v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 22 March 2021 · WRIT - C No. 7492 of 2021 · **Writ dismissed; Supply Code 2005 remedies left open.**

HEADNOTE

A consumer served with a provisional assessment notice fixing a date for personal hearing, who does not appear before the Executive Engineer and instead writes to the Energy Minister, cannot obtain writ quashing of the final assessment. Grievances may still be raised before the appropriate authority under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Meena Pushp filed a writ petition seeking to quash a final assessment order dated 22 November 2018 of the Executive Engineer. The record showed a provisional assessment notice dated 5 October 2019 fixing 30 October 2019 for personal hearing. Instead of attending at the Executive Engineer's office, she wrote that day to the Energy Minister, Government of Uttar Pradesh; her counsel said a copy was also left with the Executive Engineer. She did not appear on the hearing date.

HOLDING-UNITS

HOLDING-UNIT · EA2003::126

hearing on provisional assessment

HOLDING

Where a provisional assessment notice granted a date for personal hearing and the consumer did not appear before the assessing officer, instead addressing the Energy Minister, the final assessment will not be quashed in writ. It remains open to raise grievances before the appropriate authority under the U.P. Electricity Supply Code, 2005. ¶ 3-4

PRINCIPLE TAGS

assessment-hearing-not-availed Failure to appear on the date fixed in the provisional assessment notice, even if a letter was sent to the Energy Minister, bars writ quashing of the final assessment. ¶ 3-4

residual-supply-code-remedy After dismissing the writ, the Court left the consumer free to pursue grievances before the appropriate authority under the U.P. Electricity Supply Code, 2005. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE FINAL ASSESSMENT ON MERITS

The Court refused quashing because the hearing was not attended and left Code 2005 remedies open; it did not examine the assessment itself. ¶ 3-4